How East Detroit Is Governed

Reading 2 of 4: Authority, independent agencies and the real models behind them

Public Mechanics
Student edition, November 2026

How to read this document

This reading explains who holds authority in East Detroit and which real governments the arrangement draws on. It is not an adopted charter. No procurement, service platform, cloud vendor, governance board or first service has been chosen; all of these are **OPEN**.

As in every reading in this set, **REAL REFERENCE** marks real laws, places and organizations; **SCENARIO** marks facts the course has created; and **OPEN** marks choices the class will make.

The problem being governed

East Detroit has 382,417 residents across twenty provisional neighborhoods. It combines city services and county duties in one fictional government, but many organizations that residents deal with remain independent. Growth brings new parcels, school crowding, expensive housing, long commutes, income gaps, and demand for water, safety, recreation, permits and benefits.

Every decision in this course belongs to a named person or body. When the class needs a decision, ask first who has the power to make it.

Who holds authority

Table 1. Starting authority of each participant (SCENARIO)

Organization	Starting status	What this means in the exercise
City-county departments: planning, address and GIS, clerk, public health, the City Housing Division, human services, parks, police and 911, fire, finance, technology	Internal; must take part in the process	Responsible for their own mandates and capacity. Can contest policy, financing, sequence, feasibility and methods.
Elected municipal and county leaders	Internal governing authority	Must define decision rights, appropriations, accountability and how conflicts are resolved.

Organization	Starting status	What this means in the exercise
State of Colorado agencies	External, with authority over their programs	Can refuse integration, impose program rules or agree to a limited arrangement. The city cannot rewrite federal or state eligibility.
East Detroit Regional Housing Authority (EDRHA)	External, independent authority with its own board and a regional constituency	Runs its own housing assistance and properties. Can negotiate or decline shared services and data access.
East Detroit Public Library District	External, independent district with its own board and tax levy	Runs libraries, public computers and in-person help. Can agree, set terms or decline to act as a help point for city services.
East Detroit County Court	External: funded by the city-county, but its judges decide independently	Controls its own case records. Can agree, set conditions or decline to share case information.
East Detroit Health and Hospital Authority	External, independent public authority; board appointed by the mayor	Runs the public safety-net hospital. Patient records stay under medical privacy law; can agree to limited referrals or decline.
East Detroit Health System	External, independent health system	Runs the Level I trauma and teaching hospital. Same rights to agree or decline as the hospital authority.
Independent school districts and boards	External, separately governed	Participation, shared data, enrollment workflows and school transportation require agreement.
RTD and any special transit authority	External	Service and fare arrangements require negotiation. A rail station in the scenario is not a data-sharing agreement.
Water and wastewater providers, special districts	External, unless the class adopts a legally supported way to absorb them	Have their own capital, water rights, rates, boundaries and service obligations to resolve.
Denver International Airport, KCFO operators, the FAA, surrounding cities and counties	External	Airport safety, routes, land ownership and boundaries constrain city plans.

Organization	Starting status	What this means in the exercise
Residents, community organizations, workers, firms and vendors	Participants with distinct rights	Engage, advocate, apply, contest, finance, sell, build or decline. Their roles differ.

What the city-county can and cannot require

A city-county can assign duties to its own departments through its charter, ordinances, administrative orders and approved budgets. That does **not** give it control over statewide eligibility rules, federal programs, independent school boards, private records, RTD, nearby municipalities or separately constituted authorities.

In practice:

- **Internal departments** must show up, make a proposal and account for implementation.
- **External parties** may decline and state their terms.
- An internal department that refuses to promise an unlawful action or an unfunded service has produced a useful finding. Record the issue and who can resolve it.
- Keep program appeals and legal review separate from technical administration.

Colorado: the legal setting

Colorado is the default legal setting for East Detroit. Where real law would require state action, say "fictional enabling rule needed" instead of claiming that a local vote overrides state law.

Consolidated city and county (REAL REFERENCE). Broomfield is a real Colorado city that gained county status through a state constitutional amendment. The course assumes East Detroit was created by a similar fictional enabling measure. That measure does not establish any particular board, software platform, elected structure or service priority. A consolidated government can reduce handoffs between city and county services, but it cannot override external authorities.

County-administered benefits (REAL REFERENCE). Colorado's human services are state-supervised and county-administered. For programs such as food assistance, county offices deliver services under state and federal requirements. This gives East Detroit operating responsibilities an ordinary city would not have. Program policy, appeals, privacy rules and access to state systems still apply.

Intergovernmental cooperation (REAL REFERENCE). Colorado's constitution lets governments cooperate and contract to provide functions each is legally allowed to provide. That makes joint work possible. It does not allow one government to take an independent agency's information without consent.

A city-county court (REAL REFERENCE, with a fictional enabling rule). In Colorado, each county normally has a state-funded county court for smaller matters: evictions, small claims, civil cases up to $25,000, misdemeanors, traffic and protection orders. A state district court hears larger cases. Denver, a consolidated city and county like East Detroit, is the exception: its county court is funded by Denver, not the state, and Denver handles the appointment of its judges. The Colorado Constitution has a section

specific to Denver's county judges (Article VI, §26). **SCENARIO:** East Detroit has a county court on the Denver model, the East Detroit County Court. Because no other Colorado county has this arrangement, it is a **fictional enabling rule** written into East Detroit's founding amendment. Felonies, family and probate cases stay with an ordinary state district court. The court is paid for by the city-county, but its judges decide cases independently and it controls its own records, so it is an outside agency in this course.

A public hospital authority (REAL REFERENCE). In 1997, Denver's public hospital left city government and became the Denver Health and Hospital Authority: under Colorado law it is a political subdivision that is not an agency of the state or the city. The mayor appoints its eleven-member board, subject to city council confirmation. **SCENARIO:** East Detroit has a public safety-net hospital on this model, the East Detroit Health and Hospital Authority. It is separate from the East Detroit Health System, the trauma and teaching hospital.

A library district (SCENARIO). East Detroit's libraries are run by the East Detroit Public Library District, an independent district with its own board and tax levy, not a city department. The Boulder Public Library District, listed under other institutional models below, is a real Colorado example of a library district governed separately from the city.

Denver airport precedent (REAL REFERENCE). Denver International Airport sits on land that was formerly in Adams County. Legal authorization, elections and agreements governed the annexation and later economic arrangements. The precedent raises questions East Detroit faces near another jurisdiction's facility: who pays, who owns land, who collects revenue and who approves new uses.

Michigan: governance comparisons

Michigan arrangements are comparisons, not East Detroit law. A Michigan-style provision applies only if the class writes and adopts it, and the class must say where Colorado law or the fictional enabling measure would authorize it.

Charter-county functions (REAL REFERENCE). Michigan's Charter Counties Act lists functions a charter county may perform, including public health, police, fire, welfare, land use, recreation and utilities. It also allows certain municipal functions to be transferred to the county by agreement. Students can evaluate a similar mechanism as a fictional East Detroit charter clause. A transferred function still requires consent from the affected government where the law requires it.

Detroit's water arrangement (REAL REFERENCE). The Great Lakes Water Authority (GLWA) leases and operates Detroit's regional water and sewer facilities. The Detroit Water and Sewerage Department keeps ownership of the city's local system and serves customers in the city. This split between asset ownership, regional operation and local customer relationships shows that different assets can have different custodians and duties. It helps the class avoid a vague claim that "the city owns the data and the system."

Neighborhood technology stewards (REAL REFERENCE). Detroit's Equitable Internet Initiative built community-led networks maintained by trained Digital Stewards. It gives residents paid roles and real responsibility, not only surveys.

Compare the choices; do not copy the laws. A student may propose mixed board appointments, an elected commission, a neighborhood council, a contracted regional operator or an internal city department. The

decision record must state who exercises each decision right and how that power is established in the scenario.

Water and shared infrastructure

Water ties several of these points together. The real Adams County spaceport plan identifies gaps in water and wastewater capacity. East Detroit's region relies on groundwater, agricultural parcels, special districts and utility extensions, and households, developers and employers compete for service commitments. Water and wastewater providers and special districts are external parties with their own water rights, rates, boundaries and capital obligations. The Detroit and GLWA arrangement offers one model for separating who owns infrastructure, who operates it and who serves customers. Any arrangement for East Detroit is **OPEN**.

Other institutional models

Table 2. Institutional models for comparison

Example (REAL REFERENCE)	How it actually works	East Detroit choice to debate (OPEN)
Colorado SIPA	A public authority oversees procurement and a contracted portal integrator	Central purchasing, vendor oversight, fees and political accountability
UTOPIA Fiber, Utah	Cities own a shared network; other providers serve customers on it	Whether a shared public asset can support competing services
KOMBIT, Denmark	Municipalities share procurement and product management	Population-based funding, portfolio priorities and the right to exit
X-tee, Estonia	Agencies exchange signed, authenticated, logged messages under agreements	Exchanging data for an approved purpose, versus shared records, versus a credential held by the resident
Athumi, Flanders	A public data company with a defined mandate and oversight	Whether to create a separate data-exchange operator, and what powers it would have
Boulder Public Library District	Local governments help select the board; the district governs itself	How to involve independent cultural or educational bodies

Example (REAL REFERENCE)	How it actually works	East Detroit choice to debate (OPEN)
Detroit and GLWA	Public ownership with separate operation	Which body owns assets, which operates the service, and which answers to residents
Detroit Digital Stewards	Residents train for and help maintain local networks	How neighborhoods gain practical power and paid roles
LinkNYC, New York City	A public franchise with a private operator bound by financial and privacy obligations	Who can finance, audit, replace and shut down a contractor

These are precedents, not requirements. Check each one's current rules before using it as a legal template; this reading does not certify that any outside institution's terms will be unchanged in 2030.

Housing: two institutions that already exist

SCENARIO. East Detroit has two separate housing institutions, and the class does not decide whether they exist:

- The **City Housing Division (EDHD)** is an internal city-county department and must take part in city planning.
- The **East Detroit Regional Housing Authority (EDRHA)** is separately governed and serves East Detroit and nearby participating communities. It can negotiate or decline proposed cooperation.

The arrangement is modeled on two real pairings: Detroit's city Housing and Revitalization Department alongside the independent Detroit Housing Commission, and Portland's Housing Bureau alongside the independent regional authority Home Forward. The comparison helps separate avoidable administrative duplication from real differences in authority: a local rent-relief decision and a federally funded housing voucher are separate obligations.

Read **Reading 3: Housing** before discussing any change to housing services. Any agreement between EDHD and EDRHA is **OPEN**.

Rules for using Colorado and Michigan arrangements in the simulation

1. **Colorado fact.** Start from real Colorado responsibilities and the fictional city-county's valid public powers.
2. **Michigan precedent.** Name what the comparison arrangement does and why it might improve outcomes.
3. **Fictional enabling change.** If an arrangement cannot simply be adopted in Colorado, write the authorizing clause or the needed state partnership into the simulation. A student vote does not amend real Colorado law.

4. **Conflicts.** Record the options, the right or interest affected, who can resolve the conflict and any outside party that must consent. The class chooses a rule and states why; it does not assume the "better" state's rule automatically wins.
5. **Independent parties.** Respect their right to refuse. A city-county resolution cannot create consent.
6. **Federal and state program boundaries.** Municipal policy cannot bypass them. Label any fictional waiver or pilot as fictional and have the appropriate simulated authority approve it.

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